Cobalt Logistics — Vendor Contract Playbook (Legal, rev. 2026-03)

Applies to all SaaS/technology vendor agreements above $100k/year. Hard rules require GC sign-off to waive.

A. Hard rules ("never accept without GC approval")

A1. **Uncapped IP infringement indemnity from the vendor**, with no carve-back through the limitation-of-liability clause. The indemnity must survive and must not be subject to the liability cap. A2. **Data processing addendum executed at signing** whenever personal data of EU/UK residents is processed (Cobalt processes EU customer and driver data for its Rotterdam and Hamburg operations). "To be attached" is not acceptable. A3. **No unilateral price increases during an initial term.** Renewal increases capped at 5% or CPI, whichever is lower, with 90 days' notice. A4. **Auto-renewal terms no longer than 12 months, with non-renewal notice of 30 days or less.** A5. **Affiliates** (Cobalt Freight Europe B.V. and Cobalt Brokerage LLC) must be covered by the license at no additional fee, or the agreement must be signed by Holdings on behalf of affiliates.

B. Preferred positions (negotiate; may concede with Legal approval)

B1. Mutual limitation of liability at 12–24 months' fees is acceptable. **Carve-outs for gross negligence, willful misconduct and fraud are our preferred position and should be accepted when offered** (they cut both ways and protect Cobalt). B2. Data export window: 60 days preferred; 30 days acceptable. B3. Governing law: Delaware or New York acceptable; jury waiver acceptable. B4. Suspension for non-payment: at least 30 days' notice preferred; 15 acceptable if cure is allowed. B5. SLA: 99.5% with credits is acceptable; credits-as-sole-remedy acceptable if termination right exists for chronic failure (3 months in any 6).

C. Drafting notes

C1. Always read the order form against the MSA: order forms often override the MSA (check the precedence clause). C2. Check that "notwithstanding" clauses do not swallow protections elsewhere in the document.